

# PROFESSIONAL SERVICES STATEMENT OF WORK

Rally, Inc. & Solstice Renewable Partners

This Agreement (this “Agreement”) is made and entered into as of July 1, 2026 (the “Effective Date”) by and between Rally, Inc., a Delaware corporation (“Provider”), and Solstice Renewable Partners (“Customer”), each a “Party” and collectively the “Parties.”

WHEREAS, Provider is in the business of providing professional advisory and implementation services for data and reporting workflows to renewable energy project developers; and WHEREAS, Customer desires to engage Provider to provide such services, and Provider desires to provide such services to Customer, subject to the terms and conditions set forth in this Agreement; NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

## Article 1. Definitions

For purposes of this Agreement, the following capitalized terms shall have the meanings set forth below. Other capitalized terms used but not defined in this Article shall have the meanings given to them elsewhere in this Agreement.

“**Affiliate**” means any entity that directly or indirectly controls, is controlled by, or is under common control with a party, where 'control' means ownership of more than fifty percent (50%) of the voting securities of such entity.

“**Authorized User**” means an employee, contractor, or agent of Customer who has been granted access to the Services by Customer and who is bound by confidentiality obligations no less protective than those set forth in this Agreement.

“**Confidential Information**” means any non-public information disclosed by one party to the other, whether orally, in writing, or by inspection, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

“**Deliverables**” means any work product, reports, code, documentation, or other materials specifically created by Provider for Customer under this Agreement or an applicable Statement of Work.

“**Fees**” means the amounts payable by Customer to Provider as set forth in Article 4 (Fees and Payment) and Exhibit A attached hereto.

“**Force Majeure Event**” means any event beyond the reasonable control of the affected party, including acts of God, natural disaster, war, terrorism, embargo, act of civil or military authority, fire, flood, or failure of third-party telecommunications or internet infrastructure.

“**Intellectual Property Rights**” means all patent rights, copyright rights, trade secret rights, trademark rights, and other intellectual property rights as may exist now or hereafter come into existence under the laws of any jurisdiction.

“**Losses**” means any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, or expenses of whatever kind, including reasonable attorneys' fees.

“**Services**” means the services described in this Agreement and any applicable Statement of Work, to be provided by Provider to Customer.

“Term” has the meaning set forth in Article 6 (Term and Termination).

## Article 2. Services

Provider shall perform the professional services described in this Statement of Work in three (3) sequential phases as set forth in Exhibit A: Discovery & Assessment, Implementation & Rollout, and Optimization & Handoff. Provider shall deliver a written summary report at the conclusion of each phase.

The parties acknowledge that this engagement is scoped as a single, defined project and does not contemplate an ongoing subscription relationship. Any additional phases or follow-on work shall require a separate mutually executed Statement of Work.

## Article 3. Fees and Payment

The total project fee is \$98,400.00, comprised of the itemized phase fees set forth below. All fees are quoted and payable in USD. Payment terms: Net 60 from the date of each invoice. Fees for each phase are invoiced upon Provider's delivery of the written summary report for that phase.

Late payments not disputed in good faith shall accrue interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law, whichever is lower. Customer shall reimburse Provider for all reasonable costs of collection, including attorneys' fees, incurred in connection with the recovery of any past-due amounts.

All fees are exclusive of applicable taxes, which Customer shall be responsible for except for taxes based on Provider's net income. Provider shall have the right to increase Fees for any renewal term upon at least sixty (60) days' prior written notice to Customer.

## Exhibit A — Project Fees

The following summarizes the pricing for the Services under this Agreement. In the event of any conflict between this summary and the fee provisions of the main body of this Agreement, this Exhibit A shall govern with respect to itemized pricing.

| Item | Description                        | Qty | Unit Price   | Amount             |
|------|------------------------------------|-----|--------------|--------------------|
| 1    | Phase 1 — Discovery & Assessment   | 1   | \$22,400.00  | \$22,400.00        |
| 2    | Phase 2 — Implementation & Rollout | 1   | \$48,000.00  | \$48,000.00        |
| 3    | Phase 3 — Optimization & Handoff   | 1   | \$28,000.00  | \$28,000.00        |
|      |                                    |     | <b>Total</b> | <b>\$98,400.00</b> |

## Article on Acceptance

Customer shall have ten (10) business days following delivery of each Deliverable or phase report to review such Deliverable and notify Provider in writing of any material non-conformance with the applicable acceptance criteria mutually agreed by the parties. If Customer does not provide such notice within the review period, the Deliverable shall be deemed accepted.

If Customer timely identifies a material non-conformance, Provider shall use commercially reasonable efforts to correct such non-conformance within a reasonable time and resubmit the Deliverable for a further ten (10) business day review period.

## **Article on Change Orders**

Either party may propose changes to the scope of Services by submitting a written change order describing the proposed change, any associated adjustment to fees, and any associated adjustment to the project timeline. No change order shall be effective unless and until signed by authorized representatives of both parties.

If the parties are unable to agree on the terms of a proposed change order within fifteen (15) business days, either party may withdraw the proposal, and the Services shall continue to be performed in accordance with the then-current scope of this Agreement or applicable Statement of Work.

## **Article 6. Term and Termination**

This Agreement shall commence on the Effective Date and continue for an initial term of 6 months (the "Initial Term"), unless earlier terminated in accordance with this Article 6. This engagement is a single, defined project and is not intended to automatically renew or convert to a subscription arrangement; upon delivery and acceptance of the Phase 3 report, this Agreement shall be deemed complete.

Either party may terminate this Agreement for cause if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice thereof. Provider may suspend or terminate Services immediately upon notice if Customer fails to pay any undisputed amount within fifteen (15) days after it becomes past due.

Upon termination or expiration of this Agreement, Customer shall pay all Fees accrued through the effective date of termination. Sections that by their nature should survive termination, including confidentiality, payment obligations, intellectual property, limitation of liability, and dispute resolution, shall survive.

## **Article 7. Confidentiality**

Each party agrees to protect the other party's Confidential Information using the same degree of care it uses to protect its own confidential information of similar nature, but in no event less than reasonable care. Neither party shall disclose the other party's Confidential Information to any third party except to Affiliates, employees, contractors, and advisors who have a need to know such information and who are bound by confidentiality obligations at least as protective as those herein.

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the receiving party; (b) was rightfully known to the receiving party prior to disclosure; (c) is rightfully obtained by the receiving party from a third party without restriction; or (d) is independently developed by the receiving party without use of or reference to the disclosing party's Confidential Information.

These confidentiality obligations shall survive termination of this Agreement for a period of three (3) years, except with respect to trade secrets, which shall be protected for as long as such information remains a trade secret under applicable law.

## **Article 10. Limitation of Liability**

EXCEPT FOR BREACHES OF CONFIDENTIALITY OBLIGATIONS, INDEMNIFICATION OBLIGATIONS, OR A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

EACH PARTY'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CUSTOMER UNDER THIS AGREEMENT.

## **Article 15. Notices**

All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by confirmed email, or sent by nationally recognized overnight courier, in each case to the address set forth below or such other address as a party may designate by written notice in accordance with this Article.

**If to Provider:** Rally, Inc., 548 Market Street, Suite 200, San Francisco, CA 94104

**If to Customer:** Solstice Renewable Partners, 77 Prairie Wind Road, Boulder, CO 80301

## **Article 12. Miscellaneous**

This Agreement, together with all Exhibits attached hereto, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral. This Agreement may be amended only by a written instrument signed by authorized representatives of both parties.

Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets. This Agreement shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles. Any dispute arising out of or relating to this Agreement shall be resolved exclusively in the state or federal courts located in San Francisco County, California, and each party consents to the personal jurisdiction of such courts.

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving party. Neither party shall be liable for any delay or failure to perform resulting from a Force Majeure Event.

## **Signatures**

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date first written above.

**Rally, Inc.**

**Solstice Renewable Partners**

/s/ Jordan Reyes

Jordan Reyes, VP Customer Success

Date: July 1, 2026

/s/ Priya Chandrasekaran

Priya Chandrasekaran, Director of Sustainability Programs

Date: July 1, 2026